VISUAL STORYTELLER

TERMS AND CONDITIONS OF SERVICE

Version 2026-11-04.1 | Harare, Zimbabwe

These Terms and Conditions govern services provided by Visual Storyteller. By accepting a quotation and confirming a booking, the client agrees to these terms, subject to applicable Zimbabwean law.

1. Bookings and quotations

All bookings are subject to availability.

A booking is confirmed once the client accepts the quotation and pays the required 50% deposit.

Standard bookings require at least 48 hours' notice, subject to availability. Shorter-notice bookings may be accepted by arrangement.

Quotations remain valid for seven (7) days from the date of issue unless otherwise stated.

The quotation will specify the selected package, coverage, deliverables, fees, applicable additional charges and special arrangements.

2. Payments

A 50% deposit is required to secure a booking.

The outstanding balance is payable immediately after the agreed coverage ends, unless another arrangement has been agreed in writing.

Accepted payment methods include EcoCash and cash.

Additional services, extended coverage, creative changes and requests outside the agreed package may attract additional charges.

Final deliverables may be withheld until outstanding payments have been settled, subject to applicable law and agreed arrangements.

3. Cancellation and rescheduling

If the client cancels at least 48 hours before the scheduled commencement of the event, 35% of the deposit paid will be refundable. The remaining 15% of the deposit is retained by Visual Storyteller as the cancellation fee.

The refundable amount may be reduced by additional reasonable, documented costs already incurred specifically for the booking. If no such additional costs have been incurred, the client receives the full 35% refund.

For cancellations made less than 48 hours before the scheduled commencement, the applicable cancellation fee and any deductions will be determined in accordance with the accepted quotation and

applicable Zimbabwean law.

Cancellation charges and deductions remain subject to statutory consumer rights, protections and exceptions.

The client is entitled to one free rescheduling request, subject to availability and reasonable notice. Further rescheduling requests may attract additional charges.

If Visual Storyteller cannot fulfil a confirmed booking, the client will be offered a full refund of payments made or an alternative date agreed by both parties.

4. Client responsibilities and locations

The client must provide accurate event information, including dates, times, venue and contact details, and communicate special requirements or schedule changes in advance.

The client is responsible for obtaining necessary permissions or approvals for photography and videography at the chosen venue.

Where services are provided outside Visual Storyteller’s studio or its two designated standard locations, the client is responsible for applicable transport, accommodation, permits and venue costs.

External location costs are payable directly by the client to the relevant venue, provider or service operator.

5. Coverage, overtime and delivery

Coverage is limited to the hours and deliverables specified in the accepted quotation.

A grace period of 45 minutes applies when an event runs beyond the agreed coverage period.

After the grace period, each additional 45-minute period is charged at 15% of the original package price.

Additional coverage is subject to availability and operational constraints.

Standard delivery targets are three (3) days for photographs and three (3) days for video, unless otherwise stated in the quotation or agreed in writing.

Only edited deliverables specified in the selected package are included. RAW photographs and unedited footage are excluded unless expressly agreed.

Visual Storyteller retains reasonable creative discretion over composition, editing, colour grading and final selection, within the agreed brief and package.

6. Copyright and permitted use

Copyright ownership is intended to be shared between Visual Storyteller and the client to the extent permitted by applicable copyright law and the written agreement between the parties.

This shared arrangement does not override statutory rights of the actual author or other copyright owner. Where necessary, the parties will document their specific ownership interests and permissions in writing.

The client may use, share, print and make personal-use edits to delivered photographs and videos.

Commercial exploitation by the client, including resale, commercial advertising, sublicensing or licensing to third parties, requires separate written permission from Visual Storyteller.

Visual Storyteller may use and commercially license work for legitimate commercial purposes without prior notification to the client, subject to the rights of relevant rights holders, applicable law, privacy rights and any specific restrictions agreed with the client.

Nothing in this clause authorises a use prohibited by law or overrides the rights of identifiable individuals where consent or another legal basis is required.

7. Portfolio and promotional use

Visual Storyteller may use event photographs and videos for its portfolio, website, social media and other promotional activities, subject to applicable law and consent requirements.

Clients may select an opt-out of promotional use when booking.

Where a client opts out, Visual Storyteller will not publish identifiable event material for its own promotional purposes.

Use of private or domestic commissioned photographs and audiovisual material remains subject to applicable statutory rights and consent requirements.

The promotional-use opt-out applies to Visual Storyteller's own promotional publication. It does not automatically restrict separate commercial licensing, which remains subject to copyright ownership, privacy rights, legally required consent and applicable law.

8. Revisions and additional creative work

One reasonable revision round is included for corrections to the delivered work.

Corrections may include reasonable adjustments to editing, colour, presentation or errors in the agreed deliverables.

Additional creative changes beyond the included correction round are charged at 15% of the total original package fee per round.

Additional creative work will be undertaken after the client has been informed of and accepted the applicable charge.

9. Storybook and digital services

Storybook features, access periods and functionality depend on the package purchased and the accepted quotation.

The client is responsible for checking the accuracy of information supplied for the Storybook, including names, dates, programmes and other event details.

Access remains available for the period specified in the selected package.

At the end of the access period, Visual Storyteller will automatically provide the client with a ZIP archive containing all content uploaded to the Storybook during the event.

Any renewal or extension beyond the included access period is subject to the applicable renewal fee and agreement.

10. Unforeseen circumstances

Severe weather, power outages, equipment failure, illness, venue restrictions and other circumstances beyond reasonable control may affect service delivery.

Where such circumstances arise, Visual Storyteller will propose a reasonable remedy for the client's approval. This may include rescheduling, alternative arrangements or a proportionate refund for services not delivered.

Any agreed remedy will be documented between the parties.

Nothing in this clause excludes statutory consumer rights or remedies.

11. Privacy and personal information

Client information will be used for booking administration, communication, service delivery and other legitimate purposes connected with the engagement.

Personal information will be handled in accordance with applicable Zimbabwean data-protection and privacy legislation.

Clients should inform Visual Storyteller of privacy restrictions or special requirements relating to identifiable individuals at an event.

12. General provisions

Additional arrangements or variations to a quotation should be agreed in writing.

If a provision of these Terms is found to be invalid or unenforceable, the remaining provisions continue to apply to the extent permitted by law.

These Terms are governed by the laws of Zimbabwe.

Nothing in these Terms is intended to exclude, restrict or waive a consumer right that cannot lawfully be excluded, restricted or waived.

Submitting a quote enquiry and accepting these Terms does not itself confirm a booking. A booking is confirmed in accordance with the booking and deposit requirements in section 1.